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Developments Affecting Trunk Roads and Special Roads

Highways England Planning Response (HEPR 16-01)
Formal Recommendation to an Application for Planning Permission

From: Divisional Director,
Operations Division: South West Region
Highways England
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To: Edward Snook, Swindon Borough Council

CC: transportplanning@dft.gsi.gov.uk
growthandplanning@highwaysengland.co.uk

Council's Reference: S/OUT/13/1555

Referring to the notification of a planning application received on 23rd November 2013, in connection with the A419(T) and M4 Junction 15 and the proposals for Outline planning application for up to 2,380 dwellings, mixed use local centres, community uses, care accommodation, two primary schools, green infrastructure, sports facilities, engineering works, other infrastructure, demolition and new accesses from the A420, Old Vicarage Lane and Thornhill Road. Land North of A420 Eastern Villages Swindon, with all matters reserved save for access, notice is hereby given that Highways England's formal recommendation is that we:

~~a) offer no objection;~~

b) recommend that conditions should be attached to any planning permission that may be granted (see Annex A – Highways England recommended Planning Conditions);

~~c) recommend that planning permission not be granted for a specified period (see Annex A – further assessment required);~~

~~d) recommend that the application be refused (see Annex A – Reasons for recommending Refusal).~~

Highways Act Section 175B is not relevant to this application.[1]

This represents Highways England formal recommendation and is copied to the Department for Transport as per the terms of our Licence.

Should you disagree with this recommendation you should consult the Secretary of State for Transport, as per the Town and Country Planning (Development Affecting Trunk Roads) Direction 2015, via transportplanning@dft.gsi.gov.uk.

Signature:	**Date:** 24th May 2017
P/P **Name:** Rachel Sandy	**Position:** Asset Manager
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[1] Where relevant, further information will be provided within Annex A.

Annex A Highways England recommended Planning Conditions

HIGHWAYS ENGLAND ("we") has been appointed by the Secretary of State for Transport as strategic highway company under the provisions of the Infrastructure Act 2015 and is the highway authority, traffic authority and street authority for the Strategic Road Network (SRN). The SRN is a critical national asset and as such we work to ensure that it operates and is managed in the public interest, both in respect of current activities and needs as well as in providing effective stewardship of its long-term operation and integrity.

This response represents our formal recommendations with regard to planning application (App Ref – S/OUT/13/1555) and has been prepared by Rachel Sandy of the Operations Division Growth and Improvement Team and Asset Manager for the SRN in Wiltshire.

We have undertaken a review of the relevant documents supporting the planning application to ensure compliance with the current of the Secretary of State as set out in DfT Circular 02/2013 "The Strategic Road Network and the Delivery of Sustainable Development" and the DCLG National Planning Policy Framework (NPPF), being advised on this matter by our consultants, CH2M.

Statement of Reasons

The most recent correspondence from Highways England with reference to this application, dated 29th November 2016, advocated that the existing recommendation of non-approval which expired on 3rd December 2016 was extended for six months. This allowed additional time for the applicant to allay Highways England's concerns with the mitigation schemes proposed along the SRN. This response also noted that a Grampian condition requiring the completion of improvement works at M4 Junction 15 associated with the Commonhead development, and at White Hart roundabout would likely be attached to any consent granted.

Supplemental Submission Dated 14th February 2017

The applicant provided a supplemental submission to the Local Planning Authority with a covering letter from David Lock Associates dated 14th February 2016, although it is assumed this should read 14th February 2017. It noted that the submission made "*no changes to the current description of development*". The ES addendum which supported the submission concluded that there "*are therefore no additional significant environmental effects, as a result of the amendment of the application proposals, in relation to the highway or transport issues nor any change in the need for or nature of mitigation proposals, as a result of the amendment of the*

proposals,". Thus, Highways England note that the latest submission does not change our position in terms of the status of the developer proposed mitigation schemes. However, whilst these concerns remain, Highways England are content that they can be resolved should the developer agree to supporting mitigation schemes developed by Swindon Borough Council (SBC) that address the wider New Eastern Villages developments.

Conditions and Quantum of Development Prior to SRN Mitigation

Our previous response noted that Highways England were considering a Grampian condition be attached to any consent granted preventing beneficial occupation of the development prior to the completion of SRN mitigation. However, we have reconsidered this position to enable the various developments at NEV to come forward in an economically sustainable manner.

As you will be aware, both White Hart and M4 Junction 15 currently operate above capacity at peak times, it was considered that trying to identify an acceptable development quantum through our Paramics model would have resulted in no flexibility in terms of development buildout. Therefore, in the interests of allowing all applicants at NEV to bring forward their respective developments via an economically manageable means, we have based an assessment of development occupation on Swindon Borough Council's Housing Land Trajectory as included in the adopted Local Plan. On this basis, Highways England's position is that we could accept the occupation of no more than 30.63% of the total NEV development before the works commence at M4 J15 and at White Hart Junction. In respect of this application (ref: S/OUT/13/1555) this represents 729 dwellings of the proposed 2380.

This reconsideration of conditions has also allowed Highways England to examine our position regarding the outstanding issues and concerns with the development's mitigation scheme. As noted above should the developer agree to a condition which requires the support of SBC established mitigation, Highways England's concerns in relation to the developers mitigation would nullified.

Thus, we propose that we now seek to agree appropriately worded planning conditions that would be attached to any consent granted by the Local Planning Authority.

Conclusion

Following Highways England's audit of the most recent submission relating to this application we note that, in terms of the transport aspects, the proposals offer no change. Thus, it does not resolve our remaining issues with the developer proposed mitigation scheme. However, since our most recent correspondence with the applicant we have undertaken work to establish the acceptable quantum of development that can be brought forward prior to implementation of mitigation. This

work also lead to a position in which, should the applicant accept the proposed condition, our outstanding issues and concerns can be resolved.

Recommendation:
Highways England recommends that the Local Planning Authority attach conditions to any planning permission that may be granted in respect of this application (Ref: S/OUT/13/1555). These conditions are set out below.

Condition 1 (M4 J15)

'No more than 729 dwellings (C3 Land Use) or any other land use shall be occupied unless, and until the improvement scheme for M4 J15 as shown the in WSP / Parsons Brinckerhoff drawings (series of 3) dated 05 December 2016 (drawing ref: M4J15-WSP-HGN-0000-DR-HE-00001 Rev, P1; and M4J15-WSP-HGN-0000-DR-HE-00002 Rev P1; and M4J15-WSP-HGN-0000-DR-HE-00003 Rev P1), or an alternative improvement scheme which provides the same or greater level of benefit in terms of offsetting the unacceptable impacts of the development included within the adopted Local Plan which has been agreed in writing by the Local Planning Authority (in consultation with Highways England) is complete and open to traffic.'

Reason:
To ensure the safe and efficient operation of the Strategic Road Network

Condition 2 (A419 White Hart Junction)

'No more than 729 dwellings (C3 Land Use) or any other land use shall be occupied unless and until the improvement scheme for the A419 White Hart Junction shown in the Swindon Borough Council drawing number T098819-7000-01 or an alternative improvement scheme which provides the same or greater level of benefit in terms of offsetting the unacceptable impacts of the development included within the adopted Local Plan which has been agreed in writing by the Local Planning Authority (in consultation with Highways England), is complete and open to traffic'

Reason:

To ensure the safe and efficient operation of the Strategic Road Network